

25CHCV01623 25CHCV01623

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-08-11

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Case Number: 25CHCV01623 Hearing Date: August 11, 2026 Dept: F47

Dept. F47

Date: 8/11/26

TRIAL DATE: 9/27/27

Case #25CHCV01623

MOTION TO

COMPEL FURTHER RESPONSES

(Form

Interrogatories, Set 1)

Motion filed on 12/2/25 at 12:35 pm.

MOVING PARTY: Plaintiff Wendy W Fok

RESPONDING PARTY: Defendant Gina De Pasquale

NOTICE: ok

RELIEF REQUESTED: An order compelling Defendant

Gina De Pasquale to provide further verified responses to Plaintiff's Form

Interrogatories, Set 1. Additionally,

Plaintiff requests sanctions in the amount of \$2,160.00.

RULING: The motion is denied.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of an incident that occurred on 5/15/23 during an off-road motorcycle tour in and around Valencia, California. As a result of the incident, Plaintiff Wendy W Fok (Plaintiff) sustained personal injuries.

On 5/12/25, Plaintiff, a self-represented litigant, filed this action against Defendants Mountain Enterprises Inc. dba Rawhyde Adventures (Mountain Enterprises); Gina De Pasquale (De Pasquale); Erich Sachs (Sachs) and Jim Hyde (Hyde) (collectively, Defendants) for motor vehicle and negligence. On 6/27/25, Defendants answered the complaint.

On 12/2/25, Plaintiff filed and served three separate motions to compel further responses for Form Interrogatories against: (1) De Pasquale; (2) Hyde; and (3) Mountain Enterprises using the same Reservation Identification Number: 975834661513. As such, only one motion slot was reserved on the Court's calendar. Plaintiff cannot use the one reservation number for three separate motions. Therefore, the Court addresses only the earliest filed motion as against De Pasquale.

The motion seeks an order compelling De Pasquale to provide further verified responses to Plaintiff's Form Interrogatories, Set 1. Additionally, Plaintiff requests sanctions in the amount of \$2,160.00. The motion was originally scheduled for hearing on 4/10/26. Plaintiff then rescheduled the hearing to 4/27/26. On 3/27/26, De Pasquale filed and served an opposition to the motion. On 4/3/26, the Court rescheduled the 4/27/26 hearing to 8/11/26. Plaintiff has not filed a reply to the opposition.

ANALYSIS

CCP 2030.300 provides, in relevant part:

(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An answer to a particular interrogatory is evasive or incomplete.

(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general.

(b)(1) A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.

(2) In lieu of a separate statement required under the California Rules of Court, the court may allow the moving party to submit a concise outline of the discovery request and each response in dispute.

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(d) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

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A meet and confer declaration in support of a motion must state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. CCP 2016.040(a).

Plaintiff has failed to establish that the meet-and-confer obligations were met before filing the instant motion. The motion itself and the accompanying declaration merely conclude that Plaintiff met and conferred in good faith. (See Motion, p.3:6-7; Fok Decl. ¶3). The email communications attached to the motion also fail to show that Plaintiff satisfied the required meet and confer obligations before filing this motion. (See Fok Decl., Ex.B). As noted in the opposition, the communications fail to adequately address the deficiencies in the interrogatory responses at issue. (See Bowen Decl., Ex.A).

Additionally, the separate statement included with the motion does not satisfy the requirements set forth in CRC 3.1345. Plaintiff has submitted a "Table of Disputed Interrogatories" which does not set forth: the text of the specific Form Interrogatories at issue; the text of Defendant's corresponding responses and objections; or adequate and sufficient factual and legal reasons purportedly justifying further responses. See CRC 3.1345(c). The "Narrative Companion Statement" provided with the motion also fails to satisfy the necessary requirements.

Plaintiff has also not included copies of the interrogatories or Defendant's responses with the motion.

Based on the foregoing, Plaintiff has failed to establish that any of De Pasquale's objections and/or substantive responses are deficient and/or that further responses are warranted.

As the prevailing party on this motion, De Pasquale is entitled to an award of sanction against Plaintiff. CCP 2030.300(d). However, the Court finds that the 15.7 hours purportedly spent by defense counsel preparing the opposition is excessive. Therefore, the \$3,532.50 in sanctions requested by De Pasquale is reduced to \$1,800.00 (7 hours to prepare the opposition + 1 hour to prepare for and appear at the hearing multiplied by \$225/hour). (See Finger Decl. ¶3).

The Court notes that even if the motion had been granted, as a self-represented litigant, Plaintiff cannot recover monetary sanctions for

time expended in relation to the motion.

See Argaman (1999) 73 CA4th 1173, 1180.

CONCLUSION

The motion is denied. Defendant

De Pasquale's request for sanctions against Plaintiff Wendy W Fok is granted in the reduced amount of \$1,800.00, payable within 30 days